Hustle Hive CIC – Records Retention Policy and Schedule

Item	Detail
Organisation	Hustle Hive CIC, company no. 16691281
Policy lead	Kieron Davis, Director and data protection lead
Safeguarding records	Gavin Copland, Director and DSL
Version	2.0
Effective from	October 2026
Next review	September 2027, or sooner if the law, statutory guidance or a funder's requirements change

1. Purpose

This policy sets out how long we keep different records and how we dispose of them safely. Keeping records too long breaks data protection law and increases the harm if there is a breach. Destroying them too soon can leave us unable to protect a child, answer a complaint or defend a claim.

2. Principles

- We keep records for the periods in this schedule, then securely destroy or anonymise them.
- Periods run from the date shown, for example the end of a placement or a learner's date of birth.
- If the law, statutory guidance, a commissioner or a funder requires a longer period, that period applies.
- We never destroy records that may be needed for a safeguarding matter, complaint, claim, investigation or legal case (see section 8).

- Where the commissioning school holds a learner's main education record, we return or pass on records to them at the end of a placement and keep only what this schedule requires.

3. Responsibilities

The Directors are responsible for this schedule, and Kieron Davis oversees it day to day. Gavin Copland, as DSL, decides on safeguarding records. No one may destroy learner, safeguarding, staff, accident or financial records without a Director's agreement. If you are unsure, do not destroy the record; ask first.

4. Learner and participant records

Record	How long we keep it	Then
Referral, admission and placement agreement	End of placement + 6 years	Shred or delete
Progress, reports, reviews and learning plans	End of placement + 6 years	Copy to school at end of placement; shred or delete ours
Learner work and photos used as evidence	Until no longer needed for assessment, and no later than the end of placement	Return to learner or delete
Attendance registers	6 years from the date of the register	Shred or delete
Holiday club, Maker Day and workshop bookings and registers	End of the activity + 3 years	Delete
EHCPs and SEND reports supplied by schools	End of placement	Return to the school or delete
Our SEND support plans and reasonable adjustment records	End of placement + 6 years	Shred or delete
Individual learner risk assessments	End of placement + 6 years	Shred or delete
Medical information and Individual Healthcare Plans	End of placement + 6 years	Shred or delete

Record	How long we keep it	Then
Medicines consent and administration records	Until the learner's 21st birthday	Shred or delete
Behaviour records	End of placement + 6 years	Shred or delete
Physical intervention records	Until the learner's 25th birthday	Shred or delete
Suspension or ending a placement	End of placement + 6 years	Shred or delete
Off-site visit plans, consents and risk assessments	Date of visit + 6 years, or until the learner's 21st birthday if there was an accident	Shred or delete
Temporary visit copies of medical and contact information	Until the end of the visit	Shred the same day
Transport and pick-up records	3 years	Delete
Acceptable use agreements and photo consent	While in use + 6 years	Delete
Promotional photos and videos	Reviewed every year; removed when consent is withdrawn or they are no longer needed	Delete from website, social media and storage
classroom.cloud alerts that do not lead to a concern	No longer than 12 months	Deleted automatically or manually

If a learner record contains a safeguarding concern, the safeguarding retention period in section 5 applies to that information.

5. Safeguarding records

Safeguarding records are kept separately from other learner records, with access limited to the DSL and deputy DSL. They are never destroyed just because a learner has left.

Record	How long we keep it	Then
Child protection file (concerns, disclosures, referrals, chronology, correspondence with social care and police)	Original sent securely to the commissioning school or next setting within 5 days of the placement ending, with a record of what was sent and confirmation it was received. We keep a copy until the learner's 25th birthday	Shred or securely delete the copy
Child protection file for a child who attended holiday clubs or workshops only	Until the child's 25th birthday	Shred or securely delete
Child-on-child abuse, sexual violence and harassment, and Prevent concerns	As for the child protection file	As above
Record of safeguarding files transferred	Until the learner's 25th birthday	Delete

The DSL may decide to keep a record for longer where there is a good reason, for example an ongoing investigation, and records the decision.

6. Allegations and concerns about adults

We follow *Keeping Children Safe in Education* for these records.

Record	How long we keep it
Substantiated, unsubstantiated or false allegations, with outcome and LADO advice	On the person's confidential personnel file until they reach normal pension age, or for 10 years from the date of the allegation, whichever is longer
Allegations found to be malicious	Removed from the personnel file. A record is kept only if needed
Low-level concerns	At least until the person leaves our employment, then reviewed
Whistleblowing concerns and outcomes	6 years after the concern is closed, or longer if it led to an allegation

7. Other records

Staff, volunteers and recruitment

Record	How long we keep it
Personnel file, contract, training and appraisal records	End of employment + 6 years
Unsuccessful applications and interview notes	6 months after the recruitment decision
Right to work checks	End of employment + 2 years
DBS certificates	Never kept. We record the certificate number, date, outcome and who checked it on the Single Central Record
Single Central Record entries	While the person works with us, then removed
Disciplinary and grievance records	End of employment + 6 years, unless they relate to safeguarding (see section 6)
Payroll, tax and pension records	6 years from the end of the tax year

Health and safety

Record	How long we keep it
Accident and first aid records for children	Until the child's 21st birthday
Accident and first aid records for adults, and RIDDOR reports	3 years from the date of the accident, or 40 years where it relates to exposure to a hazardous substance
Risk assessments and COSHH assessments	Current version, plus previous versions for 6 years
Fire risk assessment, fire log and drill records	Current version, plus previous versions for 6 years
Equipment register, inspection, PAT and servicing records	Life of the equipment + 6 years
Workplace inspections, audits and action logs	6 years

Record	How long we keep it
Employers' liability insurance certificates	Kept permanently, as good practice

Finance, funding and contracts

Record	How long we keep it
Accounts, invoices, receipts and bank records	6 years from the end of the financial year
Grant and funding records	As the funder requires, and at least 6 years after the grant ends
Contracts, placement agreements, service level and data sharing agreements	End of the agreement + 6 years
Insurance policies	6 years after expiry, or longer while a claim is possible
Complaints and outcomes	6 years after the complaint is closed

Data protection

Record	How long we keep it
Data breach log, breach reports and ICO correspondence	6 years
Subject access and other data rights requests	3 years after completion. Identity documents are deleted once checked

Enquiries and marketing

Record	How long we keep it
General enquiries and enquiries that did not lead to a placement	12 months
Mailing list details	Until the person unsubscribes, then removed straight away. We keep a record of consent and unsubscribes for 2 years

8. Holding records for longer

If we know about, or expect, a complaint, insurance or legal claim, safeguarding or police investigation, or regulator enquiry, a Director places a hold on all relevant records. They are not destroyed, even if the normal period has ended, until the Director confirms the matter is closed.

9. Secure destruction

- **Paper:** cross-cut shredded or destroyed through a confidential waste service, never put in general waste or recycling.
- **Electronic:** permanently deleted from devices, cloud storage, email, the booking system and shared drives, including recycle bins. Old devices are wiped securely before disposal.
- **Anonymising:** where we need figures for reports or funders, we remove anything that identifies a person and keep only the anonymous data.

Kieron Davis keeps a simple destruction log for learner, safeguarding and staff records, showing the type of record, the date range, when and how it was destroyed, and who agreed it. The log never includes the personal information that was destroyed.

10. Annual review

Every September, Kieron Davis reviews our stored records, paper and electronic, and arranges for anything past its retention period to be destroyed, unless a hold applies. Gavin Copland reviews safeguarding records at the same time. The Directors also review this schedule every year.

Related policies

Read this policy alongside our Data Protection, Parent and Learner Privacy Notice, Information Sharing and Confidentiality, Personal Data Breach, Safeguarding and Child Protection, Safer Recruitment, and Health & Safety policies.

Approval and signatures

This policy has been approved by the Board of Directors of Hustle Hive CIC.

Name	Position	Signature	Date
Gavin Copland	Director and DSL		

Name	Position	Signature	Date
Kieron Davis	Director and data protection lead		
Carey Viala	Director		
Sarah Smith	Director		